

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

COMPLAINANT’S REQUEST TO FILE CONFIDENTIAL EXHIBIT A TO
COMPLAINANT’S MOTION TO ENFORCE UNDER SEAL WITHOUT REDACTION

Complainant FormuKleen, Inc. respectfully requests leave to file Exhibit A to Complainant’s Motion to Enforce April 1, 2026 Order as to Requests for Production Nos. 4 and 7 and for Sanctions under seal without redaction pursuant to 46 C.F.R. § 502.13(c) and the Protective Order entered in this proceeding.

Exhibit A consists of Bates pages RX1093, RX1095-RX1096, and the heavily redacted payment-related pages discussed in Complainant’s Motion to Enforce. Respondent produced these pages as confidential discovery material.

This request is necessary because the location, extent, and context of Respondent’s redactions are themselves part of the discovery-compliance issue presented in Complainant’s Motion. Complainant relies on these pages to show that Respondent’s redactions appear within FormuKleen-related third-party communications and payment/charge records, despite Respondent’s representations that the redacted material concerned other clients, unrelated shipments, bank information, or third-party information.

Filing Exhibit A under seal will allow the Presiding Officer to review the surrounding context of Respondent's redactions without requiring Complainant to alter the pages or further obscure the issue presented. Complainant does not possess the unredacted versions of these pages and requests in the Motion that Respondent be ordered to submit the unredacted material for in camera review.

Complainant is not seeking to file the Motion itself under seal. Complainant requests leave only to submit Exhibit A to the Motion under seal so the Presiding Officer may review the location, extent, and context of Respondent's redactions.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

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Signature:  _____

Date: 05/09/2026

CERTIFICATE OF SERVICE

I certify that on May 9, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

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